TANAKA MAGUTSA

Versus

THE STATE

HIGH COURT OF ZIMBABWE
MUTEVEDZI AND NDLOVU JJ
BULAWAYO, 1 August 2025 & 7 December 2025

Criminal Appeal

M. Mahaso, for appellant
E. Kanengoni, for respondent

MUTEVEDZI J: Sexual violations do not have boundaries. The complainant in this case is a young doctor who had just graduated from medical school and was set to start her career. She came to Bulawayo from Harare. She did not have accommodation and, like many other young professionals, had to rent a room. She found one at the appellant's house. A few weeks later, the appellant was then alleged to have raped her. The matter was reported to the police, leading to the appellant's arrest and his subsequent trial in the court aquo on charges of aggravated indecent assault as defined in s 66 (b) and rape as defined under s 65(1) of the Criminal Law Codification and Reform Act [*Chapter 9:23*] (the "CODE") respectively. He was acquitted on the aggravated indecent assault charge but convicted of the rape allegations and sentenced to fifteen (15) years' imprisonment.

[1] In count 1, the formal charges were that on 29 October 2022, at house number 19 St Giles Road, Parklands, Bulawayo, Tanaka Magutsa (the appellant) unlawfully and intentionally inserted his finger into the complainant's vagina, knowing that the complainant had not consented or that there was a real risk or possibility that she had not so consented. The allegations in respect of the second count were that on the same date and place, the appellant had sexual intercourse with the complainant without her consent or realising that there was a real risk or possibility that she had not consented to it.

[2] As already stated in the introductory paragraph, the appellant and the complainant were landlord and tenant. On the fateful night, they were both at home. They shared supper

before the complainant retired to bed. At that stage, the appellant is alleged to have dashed into the complainant's bedroom where he took her nightwear. He forcibly dragged her into his room. She fought back, but the appellant overpowered her. He pulled her into his bed and inserted his finger into her vagina before inserting his penis into her vagina. The complainant was medically examined, and a report was made leading to the arrest of the appellant.

Proceedings in the court a quo

[3] At his trial, the appellant denied the allegations, which he said had been fabricated by the complainant. He alleged that the truth of the matter was that the two of them were in a love relationship. He had later found out that she was cheating on him. He also provided his own version of the background to the incident. He said that in September 2022, the complainant approached him seeking accommodation. She was stranded, but he had no vacant room. The appellant had another tenant called Owen, who occupied an outside room but was always away at work. He then decided to request that Owen temporarily give the complainant that room. Owen agreed, and the complainant occupied the room for about two weeks. The appellant further alleged that after two weeks, an intimate relationship blossomed between them. The two would cook, eat and go out together. He also alleged that at some point he learned that the complainant was in a relationship with another man, Tonderai, who was a neighbour. That did not sit well with the appellant, who advised the complainant to find new lodgings. He said the decision led to arguments between him and the complainant that lasted for weeks. On the day in question, he had neither had any sexual intercourse with the complainant nor inserted his fingers into her vagina. The appellant added that he expected the complainant to have moved out on the day of the alleged rape. He asked her, and another argument ensued, ending with the complainant threatening to fix and embarrass him.

The State case

[4] The state led evidence from two witnesses, namely the complainant, Patience Chirinda and her mother, Nyaradzo Chirinda. Briefly and in order to put the appeal into its proper context, the complainant's evidence was that on 29 October 2022, she was with the

appellant, his nephew and another friend of his. They shared supper. After they had eaten, she continued washing dishes. When she proceeded to her room past the appellant's open door, the appellant called her. She stood by his bedroom door. He directed her to enter the room. She complied and sat on a chair. She narrated that the appellant held her leg and massaged it, and at the same time proposed love to her. She turned the proposal down. The appellant was not happy with the rejection and threatened to have sexual intercourse with her, at whatever cost. She further stated that the appellant instructed her to retrieve her morning gown from her bedroom. When she resisted, the appellant stood and indicated he would take the gown from her room himself. She followed him and realised that he had indeed taken the nightwear. She tried to take it back and followed him back into his room. The appellant immediately shut the door. She was wearing a pair of shorts which the appellant attempted to remove, but she resisted and pulled them up. The two wrestled until they reached the bed. She was subdued, and the appellant managed to remove her underwear before forcibly inserting his penis into her vagina from behind whilst she was facing downwards. When he was done, she stormed out of the room and went to her own. The appellant followed her and instructed her to stop crying. She later sent her mother a message advising her of what had happened.

[5] The complainant was extensively cross-examined. She revealed under cross-examination, that besides penetration by the appellant, nothing else occurred. She was taken to task regarding alleged discrepancies between her statement to the police and her testimony in court. She insisted that what she had told the court was exactly what she had told the police officers when the matter was reported. She was adamant that the appellant had raped her. When asked to explain how the rape happened, she said that as they struggled, the appellant pushed her onto the bed. She fell on the bed, and he inserted his penis into her vagina. She denied having a love relationship with the appellant.

[6] **Nyaradzo Chirinda,** the complainant's mother, retold what the complainant had advised her in exactly the same manner that the complainant narrated it to the court a quo. She indicated that she got a message from the complainant at around 10:55 pm, and that the complainant was crying. The message in the text was that her landlord had raped her. The witness decided to call the complainant, who narrated the events as we have already

described. She advised the complainant's father of their child's ordeal, and they decided to travel from Harare to Bulawayo that same evening. They arrived the following morning. They confronted the appellant, who apologised to them. Thereafter, they advised their daughter to report the matter to the police. Under cross-examination, she maintained the version of the rape as narrated to her by the complainant. When asked whether the complainant told her about the finer details of the ordeal, she indicated that the complainant told her that the appellant lay her on the bed and had sexual intercourse with her. Thereafter, the State closed its case. The defence applied for the appellant's discharge at the close of the state case on both counts. The court a quo acceded to the application relating to the aggravated indecent assault charge but put him on his defence on the charge of rape.

[7] The course taken by the court a quo was correct because, from the outset, it was clear that the two charges had been unnecessarily split. The insertion of the finger into the complainant's vagina was part of the violence associated with the crime of rape. It was unnecessary to charge it separately, much as it would have been illogical to prefer a charge of assault against the appellant arising from the facts of the same transaction. The appellant's dominant intent was to insert his penis into the complainant's vagina. See the case of *S v Yekelani Tshuma* HB73-25, in which this court had the following to say:

> "In the case of *R v Peterson & Ors 1*970 (1) RLR 49 the court explained the rationale against splitting of charges as being "to protect the accused person from the unnecessary duplication of convictions in a trial where the whole criminal conduct imputed on the accused constitutes in substance only one offence which could have been properly embodied in one all-embracing charge when such duplication results in prejudice to the accused." Simply put, the law recognises that in committing one offence, an accused may in that process commit several other crimes which, viewed with a strict legal lens, would constitute stand-alone criminal acts. Needless to state, such may easily be prejudicial to the accused person if he ends up being sentenced in the manner that befell the offender in this case."

Given that the appellant was acquitted on that charge, the matter must end there.

The defence case

[8] The appellant testified in his defence and also called two witnesses, Kudakwashe Mutsikwa and Owen Mutinhima. He adopted his defence outline as part of his evidence-in-chief. He emphasised that his problems had started after the complainant's infidelity had been exposed. To buttress that point, the appellant told the court aquo that the wife of a taxi driver in the area had approached him and advised that the complainant was in a love

relationship with her husband. The appellant said he was both hurt and disappointed by the complainant's conduct. He then advised the complainant to vacate the premises and seek alternative accommodation. The charges were, therefore, the complainant's way of hitting back at him. He said he only learnt of the allegations the next morning when the complainant's mother had arrived.

[9] **Kudakwashe Mutsikwa** was a nephew of the appellant and was residing with him at the material time at number 19 St Giles Road, Parklands, Bulawayo. His testimony was that the appellant and complainant were quite close and appeared to have been in a romantic relationship. He said he was also aware of the problems between the appellant and the complainant. He told the court that Tonderai's wife reported to the appellant that the complainant was in love with her husband.

[10] **Owen Mutinhima** stated that he had been a tenant at the appellant's house from 2016 to 2023. He confirmed that sometime in **August 2022**, the appellant had requested that the complainant temporarily stay in his room, which was situated outside the main house. He had agreed since he always alternated between work and the said residence. It was his evidence that appellant and complainant would occasionally come to his bar at Corner Josiah Tongogara Avenue and 4th Avenue, Bulawayo, to have drinks. He also testified that the two (appellant and complainant) did many things together. The witness further told the court *a quo* that the problems between the two started when the appellant had discovered that the complainant was cheating on him with a taxi driver. Owen also said that after the discovery, the appellant became furious and advised the complainant to vacate his premises. The complainant had approached Owen, requesting that he mediate the dispute, which he tried to do, to no avail. The witness also stated that during the evening of 29 October 2022, he was at number 19 St Giles Road, Parklands, Bulawayo, together with the appellant, Kudakwashe Mutsikwa and the complainant. After supper, he had observed the complainant going to her cottage room. He neither saw the appellant take the complainant's gown nor did he see the complainant chase the appellant into the house. He was adamant that the appellant did not rape the complainant.

Findings by the court a quo

[11] In the closing submissions, the defence appeared to argue that because the court had disbelieved the complainant regarding the charge of aggravated indecent assault, it could not believe her on the rape allegations. After considering the facts and the evidence led, the court a quo was convinced that the prosecution had proved rape. It stated as follows:

> "Indeed, the court, in its ruling for a discharge at the close of the state case, dismissed count one of the aggravated indecent assault charge by the complainant against the accused, not because she had lied to the court, but rather, she had not mentioned it in her evidence in chief, but during cross-examination. She stated that she had forgotten to mention so. The court gave the accused the benefit of the doubt in the first count and acquitted him. That did not, however, cloud the evidence of count 2, rape, which is very clear, straight to the point, and the court was satisfied that the requirements were met."

We have already mentioned that the charge of indecent assault was neither here nor there. The credibility of the complainant could not be impugned simply on the basis that she had not mentioned that the appellant had inserted his finger into her vagina. Charges are not drawn up by complainants but by the prosecution.

[12] The court a quo also rejected the appellant's defence that the complainant had a motive to lie against him because he had chased her away from the premises. It reasoned as follows:

> "The court failed to accept the accused's defence on the grounds that the complainant had a motive to lie against him because he had chased her away from his premises. Evidence from both the state and the defence, which is not controverted, is that the accused was a friend of Tonderai, who was in love with the complainant before the incident. And it was Tonderai who spoke to the accused and secured accommodation for the complainant at the accused's house. The court is now perturbed by the defence evidence that the accused discovered that the complainant had double-crossed him with Tonderai, yet he knew of the affair long before the incident. The court will not accept that piece of evidence."

[13] Equally, the court a quo found that the complainant's mother's evidence was credible. In the end, it was convinced that the prosecution had managed to prove the crime of rape. It convicted the appellant and sentenced him to fifteen (15) years imprisonment.

Proceedings before this court

[14] Dissatisfied with the conviction, the appellant lodged the present appeal. He attacked the conviction on four grounds, which were couched as follows:

> **"GROUNDS OF APPEAL**
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> 1. The court a quo grossly misdirected itself in convicting the Appellant of rape in circumstances where the State clearly failed to prove its case beyond a reasonable doubt against the Appellant.

2. The court a quo grossly misdirected itself in convicting the Appellant of Rape upon the evidence of a complainant whom it had found to be manifestly unreliable on certain aspects of her evidence.
3. The court a quo grossly misdirected itself when it found that Appellant knew of the prior relationship between complainant and Tonderai and hence there was no motive for complainant to create false allegations against the Accused, when no such evidence was led or admitted by the Accused.
4. The court a quo grossly misdirected itself when it disregarded the cogent defence that had been put forward by the Accused without any plausible basis for so disregarding the said defence in its entirety.

RELIEF SOUGHT

a. The instant appeal be and is hereby allowed.
b. The judgment of the court a quo be and is hereby set aside and substituted with the following: *"The Accused person be and is hereby found not guilty and acquitted the charge of rape".*

[14] At the hearing, counsel for the prosecution supported the appellant's contentions. She said there had been a misdirection by the trial court when it found the appellant guilty of rape despite the complainant neglecting to testify on the first count of aggravated indecent assault, which she said had occurred simultaneously with the rape. The prosecution believed that a relationship existed between the two and that, considering there were other people in the house, the complainant never bothered to raise an alarm. But in a sudden volte-face, she admitted that the defence witnesses were not honest because they contradicted each other. At the end of the appeal hearing, we dismissed the appeal and gave extempore reasons for our decision. We prepared this judgment after other legal practitioners who did not represent the appellant at his appeal but assumed agency after the fact requested that we do so, to enable them to assess the case and advise the appellant on his remedies, if any.

Issues for determination

[14] The appellant's first ground of appeal, that the prosecution failed to prove its case beyond a reasonable doubt, is an invalid ground of appeal if it is as generalised as the ground appeared in this notice of appeal. It fails to meet the threshold for a specific, precise, and clear ground. All that an appellant who makes such an allegation says is that he/she is not guilty without directing the appellate court to the specific nature of the errors, if any, that the trial court may have committed. To us, it amounts to nothing more than a fishing expedition in which an appellant hopes the court will stumble upon something anomalous in the proceedings of the court a quo. That it is so has been held in various authorities. For

instance, In *Chimaiwache v The State* SC 18-2013 at p7 the Supreme Court reaffirmed the principle stated in *R v Emerson* 1957 R that:

> "I do not consider that such general grounds of appeal as 'the conviction is against the weight of evidence' or 'the evidence does not support the conviction' or 'the conviction is wrong in law' are a compliance with the rule. It follows that where the only ground of appeal given in the notice is a vague one of this description the notice of appeal must be considered to be bad. The effect would be the same as if no notice of appeal had been given at all…"

[15] Resultantly, we struck off the ground due to the mentioned deficiencies. The second ground sought to challenge the complainant's credibility. The argument was that the complainant's testimony was not credible on account of her failure to narrate the aggravated indecent assault as already stated above. The third ground sought to impugn the court a quo's factual finding that the appellant knew that the complainant and Tonderai were in a love relationship at the time that the complainant first came looking for accommodation. In the end, we read the grievances of the appellant to be as follows:

a. Whether or not the complainant was a credible witness.

b. Whether or not the court a quo had a basis to conclude that the appellant knew about the complainant's prior relationship with Tonderai

c. Whether or not the court a quo dismissed the appellant's defence without giving reasons why it did so.

The law regarding the credibility of witnesses and factual findings

[16] In this jurisdiction, an appellate court can only interfere with the credibility findings of witnesses and the findings of fact made by a trial court in exceptional circumstances. It can only do so where it is demonstrated that the findings were irrational in the Wednesbury sense. In other words, an appellant who wishes the court to set aside a trial court's finding of credibility of a witness or of fact must show that the finding was so outrageous in its defiance of logic that no court applying its mind could have arrived at such a conclusion. In the case of *Sibanda* v *The State* HB 39-25, the principle was explained as follows: -

> "In our law, witness credibility is central in the determination of cases. Judicial officers are required to assess the credibility of witnesses. In doing so, factors such as a witness's consistency and sincerity in his/her testimony are key. The witness's demeanour in the witness stand is equally crucial. The shiftiness, uneasiness, or jitteriness of a witness may all be red flags of untruthfulness in the testimony being given. The law regarding the assessment of the credibility of witnesses in trials is trite in this jurisdiction. It is that such assessment is better left to the trial court."

[17] In the case of *S v Mlambo* 1994 (1) ZLR 410, the Supreme Court pointed out that:

> "The assessment of the credibility of the witness is par excellence the province of the trial court and ought not to be disregarded by an appellate court unless satisfied that it defies logic and common sense…The threshold required for an appellant to convince an appellate court to upset the credibility findings of a trial court is therefore very high. It must be proven that such findings are so outrageous in their defiance of logic that no court acting reasonably could have ever arrived at such conclusions."

In *Tapera v The State* HH 736-17 at p 2 TAGU J, also observed that:

> "It is trite that a court of appeal does not generally interfere with the findings of a trial court on the credibility of witnesses unless the findings are not supported by the evidence adduced during the trial.

[18] The same principle applies to findings of fact. Such findings are the discretion of a trial court. Where an appellant seeks the court to overturn a trial court's findings of fact, he/she is essentially moving the court to disregard the trial court's judgment of the matter and substitute it with its own. Needless to state, such a course is impermissible unless specified parameters are met. The test for such interference was set out by the Supreme Court in the celebrated case of *Barros and Another* v *Chimponda* 1999 (1) ZLR 58(S) where at 62G- 63A GUBBAY CJ stated that:

> "These grounds are firmly entrenched. It is not enough for the appellate court to consider that, if it had been in the primary court's position, it would have taken a different course. It must appear that some error has been made in exercising the discretion. If the primary court acts upon a wrong principle, if it allows extraneous or irrelevant matters to guide or affect it, if it mistakes the facts, if it does not take into account some relevant consideration, then its determination should be reviewed, and the appellate court may exercise its own discretion in substitution, provided it always has the materials for so doing. In short, this court is not imbued with the same broad discretion as was enjoyed by the trial court."

[19] In the case of *Mahommed v Kashiri* SC 85-19 at p9 of the cyclostyled judgment, MAKONI JA observed that:

> "The applicant's first ground of appeal simply complains that the court below was wrong in making a particular finding and should have instead made a different finding. The basis of the attack is not stated…Further, the ground of appeal does not indicate why the finding of fact or ruling is to be criticized as wrong, is said to be wrong." And as it was so eloquently pitched by GARWE JA in *Zimbabwe Open University v Ndekwere* SC 52-19 at para [41];
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> > "The gross aberration on the facts was not articulated. It remained a bald allegation impugning finding of fact. It did not state how and in what way the arbitrator grossly erred in reaching the conclusion that was sought to be impugned. In these circumstances, it remained an attack against a simple finding of fact and, clearly, does not raise any issue of law."

[20] The logic behind the above principle is not difficult to see. It is that when an appellate court deals with the issues at hand, it does so only on the basis of what appears in the record of proceedings. In other words, what the appellate court does is only a post-mortem examination. It sees the witness as described in the record. That cannot possibly be equated to the trial court's live observation of the demeanour of a witness as he/she testifies. Even in instances where such is vividly described in the record of proceedings, the description cannot supplant or even match the actual observation made by a trial court in the course of proceedings. As such, it would become untenable for an appellant to urge the court to substitute its view regarding a witness's credibility for that of the trial court, which, for all intents and purposes, is always better placed to make that determination. The only time an appellant can succeed in motivating the court to overturn such findings of the trial court is if he/she illustrates that the findings were irrational, as already stated, or that they were not supported by evidence.

Application of the law to the facts

The credibility of the complainant's testimony

[21] In the instant case, counsel for the appellant contended that it was wrong for the court a quo to discharge the appellant at the close of the state case in respect of count one on the basis that she cannot be believed, but proceeded to convict him on the second count, relying on the evidence of the same complainant. The appellant argued that once the court had found that the complainant's evidence was manifestly unreliable in certain respects, her entire testimony ought to have been disregarded. He supported that argument with the authority of *S v Takavarasha* HB 37-17, which holds that if a witness is found to have lied about one aspect of his/her testimony, the court must disregard the entire testimony because it cannot know at what point in that testimony he was telling the truth. The correctness of the decision in *Takavarasha* (supra) cannot be debated. But that authority is not applicable in this case. It is not shown in this case, in what respect the complainant is said to have lied in her evidence. The appellant was discharged at the close of the state case, not because the complainant had lied or that her evidence was manifestly unreliable, as alleged by the appellant's counsel, but because no evidence at all had been led in that regard. When witnesses testify in court, they are rarely given the freedom to say everything they wish.

Instead, the prosecution specifically guides witnesses on what to say when it leads them in examination-in-chief. A reading of the record of proceedings reveals that the prosecution asked the witness no questions about the charge of aggravated indecent assault. All the questions that were asked required her to testify in relation to the rape allegations. She did so. It would be preposterous to brand her a liar solely on the basis that the prosecutor forgot to lead evidence on a charge that he/she had preferred against the appellant. Counsel for the appellant conceded to that state of affairs at the hearing. In her judgment, the trial magistrate said that: -

> "Indeed, the court in its ruling for a discharge at the close of the state case dismissed count one of the aggravated indecent assault charge by the complainant against the accused, not because she had lied, but rather, she had not mentioned it in her evidence in chief, but during cross-examination. She stated that she had forgotten to mention so. The court gave the accused the benefit of the doubt in the first count and acquitted him. That did not, however, cloud the evidence of count 2, rape, which is very clear, straight to the point, and the court was satisfied that the requirements were met." (Bolding is my emphasis.)

[22] There exists a world of difference between unsaid evidence and false/unreliable evidence. In *casu,* the evidence regarding the indecent assault remained unsaid. In any case, we have already said the charge was nothing but a split of hairs, as it formed part of the rape transaction. The ommission of that evidence cannot be used as a basis to call for the entirety of the complainant's testimony to be discarded. It is a red herring. Other than the above argument, nothing else was raised against the complainant's credibility. Her evidence regarding the rape was truthful, and very little was done to discredit it. We cannot, therefore, as an appellate court, interfere with the court a quo's credibility findings. It was within its rights to find that the complainant was a credible witness. The ground of appeal lacks merit and cannot succeed.

The court a quo's finding regarding the complainant's relationship to Tonderai

[23] The ground of appeal relating to this aspect was couched as follows: -

> "The court a quo grossly misdirected itself when it found that Appellant knew of the prior relationship between complainant and Tonderai and hence there was no motive for complainant to create false allegations against the Accused, when no such evidence was led or admitted by the Accused."

The court a quo found as a fact that the appellant was aware, at the time the complainant approached him seeking accommodation, that she was Tonderai's girlfriend. There is no contention, therefore, that the above-ground attacks the trial court's finding of fact, the

argument being that it made that finding without any basis; that no evidence had been placed on record to show that the appellant had such knowledge. An examination of the evidence adduced at trial surprisingly paints a completely different picture. That evidence supports the trial court's conclusion that the appellant was aware of the relationship between the complainant and Tonderai. At pp 13-14 of the consolidated record of proceedings, the evidence of the complainant was that: -

> "Initially, I was staying in Harare before I was transferred to Bulawayo UBH. I did not have accommodation in Bulawayo, but my boyfriend, who was staying here, helped me look for accommodation and thus connected me with the **accused.** I came with my father and dropped off at the accused's house. The accused said he would offer me accommodation until I settled in Bulawayo. Initially, he requested $150 USD as an appreciation, not a specific amount I should be paying. I started to stay there from 13 or 14 September. The room 1 was to stay was locked. It was outside the cottage. The accused said his friend was staying there, but he could not stay there frequently; I had to stay there. The accused said he would look for the keys, as the lodger had the keys. The accused gave me the keys to the inside room. The accused gave me the keys to a room inside the main house. We put my clothes in that room. After dad left me there, we started to stay at the accused's house. All was fine. I was staying in my own room. One day accused soon after dad left **accused told me that my boyfriend was married and he asked me not to tell my boyfriend.** He said if I decided to stay in the relationship, I should know my boyfriend was married. Afterwards, my boyfriend and I grew apart. **My boyfriend's name was Tonderai.** The accused would feed me with information about Tonderai. He asked me if we had sexual intercourse with Tonderai, and I told him we had not had sexual intercourse." (The bolding is my emphasis.)

[24] The above testimony was not controverted at trial. It clearly demonstrates that the appellant knew that the complainant and Tonderai were in love. He was friends with Tonderai. It was he who actually told the complainant that he knew that she was in love with Tonderai and that Tonderai was married. He tried to put a wedge between Tonderai and the complainant. We therefore fail to understand where the allegation that the trial court made a finding unsupported by the evidence comes from. Clearly, it is an argument that was raised to support the appellant's narrative that he directed the complainant to leave his premises because he had found out that she was dating his neighbour who was married and whose wife had approached him to complain about the complainant's conduct. Juxtaposed against the complainant's testimony as indicated above, it is the appellant's evidence which remains completely false. Anchored on the complainant's testimony, there is no way that the court's finding could be said to be grossly irrational as to warrant this court's interference. It did not make any error in exercising its discretion; it did not act upon a wrong principle and did not allow extraneous or irrelevant matters to guide or affect

it. The finding is therefore not reviewable on any basis. Once more, the ground of appeal lacks merit and must be dismissed.

That the court a quo threw out appellant's defence without showing why it did so

[25] Once again, the appellant's argument that the trial court did not give plausible reasons for rejecting his defence was difficult to follow. In rejecting the defence, the learned magistrate stated the following in her judgment: -

> "The court failed to accept the accused's defence on the grounds that the complainant had a motive to lie against him because he had chased her away from his premises. Evidence from both the state and defence, which is not controverted, is that the accused was a friend of Tonderai, who was in love with the complainant before the incident. And it was Tonderai who spoke to the accused and secured accommodation for the complainant at the accused's house. The court is now perturbed by the defence evidence that the accused discovered that the complainant had double-crossed him with Tonderai, yet he knew of the affair long before the incident. The court will not accept that piece of evidence. Further, there was an inconsistency as to how the accused came to know of the affair, whether it was a message from Tonderai's wife or the wife came in person to complain to the accused of the affair between the complainant and Tonderai. That inconsistent evidence goes to the root of the defence evidence to confirm that such an incident involving the wife of Tonderai did not exist because the accused was well aware of Tonderai's affair before the rape incident, hence the complainant could not have had a motive to allege rape against the accused because the Tonderai wife incident did not happen at all. (sic)

[26] That a court gave an explanation which an accused does not find palatable is different from alleging that a court did not give cogent reasons. The reasoning of the trial magistrate is not only logical but also easy to follow. The appellant's defence was muddled up. We have already demonstrated that his allegation that he discovered that the complainant was cheating on him was preposterous because of his prior knowledge of the affair between Tonderai and the complainant. The trial magistrate further stated and rightly so, that the appellant's evidence was inconsistent, particularly regarding how he alleged to have known that the complainant was in love with Tonderai. In one breath, he said he had gotten a message from Tonderai's wife, yet in another, he said she had personally come to him. There were therefore three versions of the same issue. They were irreconcilable, and the court a quo had no choice but to strike out the appellant's defence. It was palpably false. The ground of appeal was doomed to fail.

Disposition

[27] In the end, all the grounds of appeal were meritless. We were left with no choice but to order that the appeal be dismissed in its entirety.

MUTEVEDZI J ……

NDLOVU J……..Agrees

Liberty Mcijo & Associates Legal Practitioners, Appellant's legal practitioners
National Prosecuting Authority, Respondent's legal practitioners